

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly A. Dooner, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the purchase of out-of-state creditable service.

PETITION OF:

NAME:

Alec Ciminello

DISTRICT/ADDRESS:

11 Jeremiah St Seekonk, MA 02771

SENATE No.

By Mrs. Dooner (by request), a petition (accompanied by bill) (subject to Joint Rule 12) of Alec Ciminello for legislation relative to the purchase of out-of-state service. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the purchase of out-of-state creditable service.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any special or general law, or rule or regulation to the contrary, section
2 3 of chapter 32 of the General Laws, as appearing in the 2022 Official Edition, is hereby
3 amended in subdivision (4) by inserting after the third paragraph the following paragraph:-

4 Notwithstanding the foregoing, if a retirement board accepts payment from a member for
5 the purchase of out-of-state service and issues to the member an estimate of the creditable
6 service to be granted thereby, such payment shall be deemed validly accepted and the member
7 shall be credited with the years of service so estimated for all purposes of this chapter. A
8 subsequent determination that the member may have been entitled to a retirement allowance
9 from another state shall not operate to divest the member of such creditable service, provided
10 that the board had accepted payment at the time of the estimate.